



POLICE DEPARTMENT

May 19, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202311188 (Incident Date: November 28, 2023) regarding Police Officer Emilio Perez, Tax No. 967248 (PODS Case No. C-033966)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Emilio Perez and has determined that his actions do not warrant disciplinary action.

After reviewing the facts and circumstances of this matter and the relevant video footage, it is clear that the complainant was noncompliant with the officers. When officers attempted to arrest the complainant for assaulting an individual with a knife, the complainant fled into his home nearby and tried to close the door behind him; officers asked multiple times for him to open the door, while simultaneously trying to keep it open. Instead of complying with the officer's directions, the complainant attempted to push the door closed on the officers. The respondent used Oleoresin Capsicum spray to gain compliance. Unfortunately, the Oleoresin Capsicum spray struck two other individuals who were present in the house. However, the use of force was reasonable under the circumstances.

Therefore, based on the foregoing, Police Officer Perez will not receive any disciplinary action for the alleged misconduct.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

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